

[illegible]

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	The contractor shall provide services for the Collection and Disposal of Food Remainers in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
0002	The contractor shall provide services for the Collection and Disposal of Vegetable Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	35,000	Liter		
0003	The contractor shall provide services for the Collection and Disposal of packed, outdated Food in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
0004	The contractor shall provide services for the Collection and Disposal of packed, outdated Meat in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	8,000	Liter		
0005		3,000	Cubic		

	The contractor shall provide services for the Disposal of BIO Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price		Centimeter		
Option Line Item 1001	The contractor shall provide services for the Collection and Disposal of Food Remainers in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 1002	The contractor shall provide services for the Collection and Disposal of Vegetable Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	35,000	Liter		
Option Line Item 1003	The contractor shall provide services for the Collection and Disposal of packed, outdated Food in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 1004	The contractor shall provide services for the Collection and Disposal of packed, outdated Meat in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	8,000	Liter		

Option Line Item 1005	The contractor shall provide services for the Disposal of BIO Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	3,000	Cubic Centimeter		
Option Line Item 2001	The contractor shall provide services for the Collection and Disposal of Food Remainers in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 2002	The contractor shall provide services for the Collection and Disposal of Vegetable Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	35,000	Liter		
Option Line Item 2003	The contractor shall provide services for the Collection and Disposal of packed, outdated Food in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 2004	The contractor shall provide services for the Collection and Disposal of packed, outdated Meat in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	8,000	Liter		

Option Line Item 2005	The contractor shall provide services for the Disposal of BIO Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	3,000	Cubic Centimeter		
Option Line Item 3001	The contractor shall provide services for the Collection and Disposal of Food Remainders in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 3002	The contractor shall provide services for the Collection and Disposal of Vegetable Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	35,000	Liter		
Option Line Item 3003	The contractor shall provide services for the Collection and Disposal of packed, outdated Food in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 3004	The contractor shall provide services for the Collection and Disposal of packed, outdated Meat in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	8,000	Liter		

Option Line Item 3005	The contractor shall provide services for the Disposal of BIO Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	3,000	Cubic Centimeter		
Option Line Item 4001	The contractor shall provide services for the Collection and Disposal of Food Remainers in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 4002	The contractor shall provide services for the Collection and Disposal of Vegetable Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	35,000	Liter		
Option Line Item 4003	The contractor shall provide services for the Collection and Disposal of packed, outdated Food in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	250,000	Liter		
Option Line Item 4004	The contractor shall provide services for the Collection and Disposal of packed, outdated Meat in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	8,000	Liter		

Option Line Item 4005	The contractor shall provide services for the Disposal of BIO Waste in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	3,000	Cubic Centimeter		
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Continuation of Description

Requirements

Disposal of Waste Food and Bio Waste for USAG Baumholder

0001

Product Service Code : S205

0002

Product Service Code : S205

0003

Product Service Code : S205

0004

Product Service Code : S205

0005

Product Service Code : S205

Continuation of Deliveries or Performance

0001	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2026 To 09 Jul 2027
0002	Quantity 35,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2026 To 09 Jul 2027
0003	Quantity 250,000 Liter

	Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2026 To 09 Jul 2027
0004	Quantity 8,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2026 To 09 Jul 2027
0005	Quantity 3,000 Cubic Centimeter Address and POC Place of Performance

	DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2026 To 09 Jul 2027
Option Line Item 1001	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2027 To 09 Jul 2028
Option Line Item 1002	Quantity 35,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR

	SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2027 To 09 Jul 2028
Option Line Item 1003	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2027 To 09 Jul 2028
Option Line Item 1004	Quantity 8,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY

	Period of Performance From 10 Jul 2027 To 09 Jul 2028
Option Line Item 1005	Quantity 3,000 Cubic Centimeter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2027 To 09 Jul 2028
Option Line Item 2001	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY

	Period of Performance From 10 Jul 2028 To 09 Jul 2029
Option Line Item 2002	Quantity 35,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2028 To 09 Jul 2029
Option Line Item 2003	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2028

	To 09 Jul 2029
Option Line Item 2004	Quantity 8,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2028 To 09 Jul 2029
Option Line Item 2005	Quantity 3,000 Cubic Centimeter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2028 To 09 Jul 2029

Option Line Item 3001	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2029 To 09 Jul 2030
Option Line Item 3002	Quantity 35,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2029 To 09 Jul 2030
Option Line Item	Quantity 250,000 Liter Address and POC

3003	Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2029 To 09 Jul 2030
Option Line Item 3004	Quantity 8,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2029 To 09 Jul 2030
Option Line Item 3005	Quantity 3,000 Cubic Centimeter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU

	W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2029 To 09 Jul 2030
Option Line Item 4001	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2030 To 09 Jul 2031
Option Line Item 4002	Quantity 35,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY

	Period of Performance From 10 Jul 2030 To 09 Jul 2031
Option Line Item 4003	Quantity 250,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2030 To 09 Jul 2031
Option Line Item 4004	Quantity 8,000 Liter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY

	Period of Performance From 10 Jul 2030 To 09 Jul 2031
Option Line Item 4005	Quantity 3,000 Cubic Centimeter Address and POC Place of Performance DoDAAC: W507MB CountryCode: DEU W6E6 SITE BHR SMITH BARRACKS BLDG 8716, AULENBACHER STRASSE BAUMHOLDER 55774 GERMANY Period of Performance From 10 Jul 2030 To 09 Jul 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	2020-06		
52.204-13	System for Award Management Maintenance.	2018-10		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	2025-01		
52.212-4	Contract Terms and Conditions- Commercial Products and Commercial Services.	2023-11		
52.222-50	Combating Trafficking in Persons.	2025-10		

52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award.	1996-08
52.233-4	Applicable Law for Breach of Contract Claim.	2004-10

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	2024-05	Deviation 2024- O0013	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7022	Expediting Contract Closeout.	2021-05		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7007	Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.	2018-12		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	2024-02	Deviation 2024- O0006	2024-02

252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.246-7003	Notification of Potential Safety Issues.	2023-01
252.247-7023	Transportation of Supplies by Sea.	2024-10

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

Contractor shall submit a 2in1 Invoice.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0672
Issue By DoDAAC	W564KV
Admin DoDAAC	W564KV
Inspect By DoDAAC	W507MB
Service Approver (DoDAAC)	W507MB

Service Acceptor (DoDAAC)	W507MB

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

For Payment Information, the vendor and/or customer shall verify payment information in MyInvoice Module within PIEE. MyInvoice tutorials are located here:

German Language: <https://youtu.be/wUfCFtFZepU>

English Language: <https://www.youtube.com/watch?v=sbYi85oRH5o>

For inquiries about overage "accepted" invoices in WAWF (over 30 calendar days from invoice submission date AND acceptance date), send all request to: DFAS-EUROPE-CUSTOMERSERVICE@MAIL.MIL

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

TBD

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	2020-06		
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	2015-11		
52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05		
52.225-14	Inconsistency between English Version and Translation of Contract.	2000-02		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	2014-07		
52.228-4	Workers' Compensation and War-Hazard Insurance Overseas.	1984-04		
52.229-6	Taxes-Foreign Fixed-Price Contracts.	2013-02		
52.232-1	Payments.	1984-04		

52.232-8	Discounts for Prompt Payment.	2002-02
52.232-23	Assignment of Claims.	2014-05
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06
52.233-1	Disputes. (Deviation 2026-00038)	2026-02
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	1984-04
52.242-17	Government Delay of Work.	1984-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	2023-01		
252.211-7008	Use of Government-Assigned Serial Numbers.	2010-09		
252.222-7002	Compliance with Local Labor Laws (Overseas).	1997-06		

252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	2014-09		
252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03		
252.225-7005	Identification of Expenditures in the United States .	2005-06		
252.225-7033	Waiver of United Kingdom Levies.	2003-04		
252.225-7041	Correspondence in English.	1997-06		
252.225-7048	Export-Controlled Items.	2013-06		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	2024-08	Deviation 2024-O0014	2024-08
252.229-7002	Customs Exemptions (Germany).	1997-06		
252.229-7014	Full Exemption from Two-Percent Excise Tax on Certain Foreign Procurements.	2022-10		
252.232-7008	Assignment of Claims (Overseas).	1997-06		
252.233-7001	Choice of Law (Overseas).	1997-06		
252.243-7001	Pricing of Contract Modifications.	1991-12		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective
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Date

52.217-8 Option to Extend Services. 1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the period of performance before the contract expires.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the period of performance before the contract expires; provided that the Government gives the Contractor a preliminary written notice of its intent to extend within the period of performance before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.252-2 Clauses Incorporated by 1998-02
Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov>

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of of the following deviations:

- 52.233-1 DEV Disputes,
- 252.204-7012 DEV Safeguarding Covered Defense Information and Cyber Incident Reporting,
- 252.225-7963 DEV Antiterrorism/Force Protection for Defense Contractors Outside the United States,
- 252.225-7966 DEV Prohibition Regarding Russian Fossil Fuel Business Operations-- Representation,
- 252.225-7967 DEV Prohibition Regarding Russian Fossil Fuel Business Operations,
- 252.225-7972 DEV Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems and
- 252.225-7973 DEV Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems-- Representation.

All clauses with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.225-7963	Antiterrorism/Force Protection for Defense Contractors Outside the United States. (DEVIATION 2026-O0041)	2026-02	Deviation 2026-O0041	2026-02

**ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS
OUTSIDE THE UNITED STATES (DEVIATION 2026-O0041) (FEB 2026)**

(a) *Definition.* "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from HQDA-AT; telephone, DSN 222-9832 or commercial (703) 692-9832.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

5152.233-4002 AMC-LEVEL PROTEST PROGRAM (June 2016)

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible contracting officer. However, you can also protest to Headquarters, AMC.

The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the Government Accountability Office or other external forum. Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 45 working days from filing.

To be timely, protests must be filed within the periods specified in FAR 33.103.

Send protests (other than protests to the contracting officer) to:

Protest to HQAMC shall be filed at:

Headquarters U.S. Army Materiel Command

Office of Command Counsel-Deputy Command Counsel 4400 Martin Road

Rm: A6SE040.001

Redstone Arsenal, AL 35898-5000

Fax: (256) 450-8840 or e-mail: usarmy.redstone.usamc.mbx.protests@army.mil

Packages sent by FedEx or UPS should be addressed to: Headquarters U.S. Army Materiel Command

Office of Command Counsel-Deputy Command Counsel

4400 Martin Road Rm: A6SE040.001

Redstone Arsenal, AL 35898-5000

The AMC-level protest procedures are found at: <https://www.amc.army.mil/Connect/Legal-Resources/>

If Internet access is not available, contact the contracting officer or HQ, AMC to obtain the AMC-Level Protest Procedures.

(End of Provision)

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	PWS Disposal of Waste Food and Bio Waste	Performance Work Statement		31 Mar 2026		21	Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management.	2024-11		
52.212-1	Instructions to Offerors- Commercial Products and Commercial Services.	2023-09		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	2019-12		

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [] does, [] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of 2021-05
Covered Defense
Telecommunications Equipment
or Services-Representation.

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual

instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.215-7008 Only One Offer.

2022-12

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer

notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U. S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.225-7000 Buy American--Balance of 2024-02
Payments Program Certificate.

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) Definitions. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) Certifications and identification of country of origin.

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the

domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Instructions for Submission of Quotes

The Government intends to award a Firm Fixed-Price (FFP) contract for this requirement based on Technically Approved, SPRS and Lowest Price in accordance with FAR 12. Quotes which do not meet the required technical or delivery requirements will be determined "Unacceptable" and may not be considered for award.

Quoter shall include all documents and information in accordance with the instructions herein. Noncompliance with the Request for Quote (RFQ) requirements may hamper the Government's ability to properly evaluate the quote and may result in elimination of the quote from further consideration for award. Quoter is cautioned to follow the instructions carefully and is encouraged to present its best technical quote and prices in its initial submission, because the Government intends to evaluate quotes and award a contract without discussions, however, exchanges may be conducted upon discretion by the contracting officer. Quoter shall submit a quote that is self-sufficient and responds directly to the requirements of this solicitation. If a Quoter believes that the requirements in these instructions contain an error, an ambiguity, omission, or are otherwise deemed unsound, the Quoter shall immediately notify the Contracting Officer (KO) in writing with supporting rationale.

1. Requirement Clauses and Provisions:

a. The quoter must complete and submit with their quote, as appropriate, the following representations, certifications and clauses listed in full text within this solicitation.

i. FAR 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction Under Any Federal Law

ii. FAR 52.229-11, Tax on Certain Foreign Procurements--Notice and Representation

1. Required for all foreign registered SAM vendors, a W-14 template is attached to the Solicitation.

iii. DFARS 252.204-7016, Covered Defense Telecommunications Equipment or Services

iv. DFARS 252.204-7017, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services - Representation

v. DFARS 252.229-7001, Alt. I, Tax Relief

1. Required for German registered SAM vendors.

b. For provisions completed by the quoter electronically as part of its annual representations and certifications, the contracting officer will consider that information instead of requiring the quoter to complete and submit those provisions.

c. For those provisions and clauses that have not been completed electronically, the quoter must submit them with the quote.

d. For the annual FAR and DFARS representations and certifications submitted electronically via the SAM website, the quoter verifies by submission its quote that those representations and certifications currently posted electronically that apply to this solicitation have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation, as of the date of its quote, and are incorporated in its quote by reference (see FAR 4.1201); except for the changes expressly identified in the quoter's quote. Regarding any changes, the quoter represents that the new information is current, accurate, and complete as of the date of its quote and incorporated into it. Any changes provided by the quoter in its quote are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

e. All quotes, questions and correspondence shall be submitted in the English language. Quotes submitted in a language other than English will be determined "Unacceptable" and will not be evaluated. Quoter's may submit certified translations of documents, manuals, and/or product literature from their native language to the English language. Quotes that are sent in multiple emails must be numbered sequentially to include the total number of emails sent.

f. The quoter is responsible for ensuring the Government's receipt of its quote. No late submissions will be accepted. Block 8 of this solicitation provides the due date and time for quotes. Local time is Central European Time (CET).

2. System for Award Management (SAM):

a. In order to be considered for award, prospective quoters shall be registered in SAM by the date quotes are due (www.sam.gov).

3. Submission Information:

a. Submission of quotes shall be via email to the following: Ms. Maryanne Peck, Contract Specialist, maryanne.e.peck.civ@army.mil, and Mr. Ricardo Colon Acevedo, Contracting Officer, ricardo.colonacevedo.civ@army.mil.

b. All electronic e-mailed submissions shall follow the following format:

i. Electronic quotes provided via e-mail shall be submitted in Microsoft Word, Excel Format, Adobe Acrobat (pdf) or as indicated elsewhere. WINZIP (zip) files cannot be accepted as they are routinely blocked by the domain firewall. Quotes that are sent in multiple e-emails shall be numbered to include the total sent, for example 1 of 3.

ii. All quotes with company identifying information (name and logo) shall be limited to the cover of the submitted quote of each section. This includes technical submittals and schedules provided with the quotes. Failure to do so may render your quote unacceptable and therefore, may not be evaluated.

iii. Microsoft Excel files submitted shall be unlocked, formula driven, and numbers shall not be hard coded, where applicable. Spreadsheets shall be in Microsoft Excel compatible form.

4. Questions:

a. Quoters shall submit any questions via email to: Ms. Maryanne Peck, Contract Specialist, maryanne.e.peck.civ@army.mil and Mr. Ricardo Colon Acevedo, Contracting Officer, ricardo.colonacevedo.civ@army.mil.

b. All questions shall be submitted no later than 7 days prior to the solicitation close date. Questions shall annotate a reference to the specific solicitation element to which they pertain.

5. Place of Performance:

a. The work to be performed under this contract will be performed at Smith, Wetzel and Quartermaster Area in Baumholder as well as at the Waterworks Areas in Hoppstadten and Pfeffelbach.

6. Period of Acceptance:

a. The contractor shall annotate its agreement to hold its quoted prices firm for 60 calendar days from the date specified for receipt of quotes.

7. Price Submission:

a. The Government intends to award one contract from this solicitation. The quoters shall submit quoted prices in accordance with (IAW) the formats described in Addendum to 52.212-1 Paragraph 3b. that is consistent with and supports the line items of the Standard Form (SF) 1449 provided as part of this solicitation.

8. Submission Requirements for Technically Approved:

a. The quoter shall submit technical information IAW the formats described in 52.212-1 Paragraph 3 "Submission Information". to be evaluated in accordance with the evaluation criteria in 52.212-2. Failure to provide the following technical documentation may result in a quoter's quote being determined non-responsive and removed from further consideration for award. Therefore, it is essential that the quoter provides all the documentation listed below. The technical documentation to be provided upon quote submission is as follows:

i. **Capability Statement.** *Quoters* shall provide a capability statement. The capability statement shall include the following:

1. Active CAGE Code in SAM.gov

- CAGE Code is required for Supplier Performance Risk Score.
- Vendor POC Names and Phone Numbers.
- Vendor statement of capability to perform the required services listed in Attachment 1, Performance Work Statement (PWS).

2. Demonstrated Experience: Quoters must demonstrate relevant experience by providing at least one (1) contract reference from the last ten (10) years for the same or similar service to either government or commercial entities.

3. Subcontractor and Teaming Arrangements. The vendor capability statement shall include one of the following:

- An affirmative statement that the vendor will perform the work.
- OR-
- A comprehensive list of all proposed subcontractors.

9. Supplier Performance Risk:

a. The quoter shall submit their Commercial and Government Entity (CAGE) code in Block 17a of the SF 1449. This CAGE code will be used by the Government to access Supplier Performance Risk information. The quoter shall also provide a national stock number (NSN), internet blog serial number (IBSN), universal product code (UPC), global standards (GS1), or manufacturer's CAGE (if different from quoter's cage) and part numbers of each end product contained in the quoter's quote that the Government will use to query the SPRS system to assess price and item risk.

10. Compliance Review:

a. The Government will perform a compliance review of the quoter's quote to determine the extent of compliance to the solicitation instructions. A quote may be rejected if:

i. Failure to submit the information requested in the solicitation instructions may result in the quoter's quote being deemed noncompliant, and therefore may result in the elimination of the quote from further consideration.

11. Attachments:

- a. Attachment 1 Performance Work Statement (PWS)
- b. Attachment 2 W-14

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services.	2021-11		

Evaluation-Commercial Products and Commercial Services (Nov 2021)

In accordance with FAR 12.203, Quoters are notified that the Government will evaluate all quotes where the factors for the basis of award are specified in 52.212-2 of this solicitation.

The Government will award a contract based on the quote that conforms to this solicitation and is evaluated as Technically Approved, SPRS and Lowest Price.

The following evaluation criteria shall be used as the basis for award:

Factor 1: Technically Approved:

The quote shall meet the requirements set forth herein as outlined in Attachment 1: Performance Work Statement (PWS).

All subfactors will be evaluated as acceptable or unacceptable. Quotes which fail to meet the sub factor evaluation criteria will be determined 'unacceptable' and may not be considered for award.

Technical Sub Factor:

Capability Statement

Evaluation Criteria

To receive an acceptable rating in this Subfactor:

The Vendor's capability statement clearly demonstrates its capability to meet the required delivery and addressed the following:

1. Vendor's Capability Statement identifies the Vendor has an active CAGE Code in SAM.gov.

2. Vendor's Capability Statement identifies Vendor's POC Names and Phone Numbers.

3. Vendor's Capability Statement identifies the Vendor has the capability to perform the required services listed in the Performance Work Statement (PWS).

4. Demonstrated Experience: Quoters must demonstrate relevant experience by providing at least one (1) contract reference from the last ten (10) years for the same or similar service to either government or commercial entities.

5. Subcontractor and Teaming Arrangements. The vendor capability statement shall include one of the following:

- An affirmative statement that the vendor will perform the work.

- OR-

- A comprehensive list of all proposed subcontractors, joint venture partners or other teaming arrangements intended to support this requirement. For each entity listed, the quoter shall furnish:

- a. The entity's legal name, address and primary point of contact.

- b. A detailed narrative of the specific tasks, duties or portion of work the entity is to perform.

- c. A signed Letter of Intent from an authorized representative of the entity, submitted on the entity's official letterhead. The letter must explicitly state the entity's commitment to partner with the quoter in the performance of this specific requirement.

To receive an unacceptable rating in this subfactor, the vendor's *Capability Statement* does not meet all requirements above.

Factor 2: SPRS

The Government will consider Risk in accordance with the provision at 252.204-7024, Notice on the Use of the Supplier Performance Risk System. The Government will consider supplier risk and item price risk as described in the cited provision. For purposes of this Risk assessment, the Government will only consider information contained in the Supplier Performance Risk System (SPRS). Any questions or concerns the quoter has concerning its SPRS risk assessments should be addressed as described in paragraph (d) of the provision.

Rating Description

The rating will be based on an "Acceptable" or "Unacceptable" basis*. The following definitions will be used to assign the rating:

Acceptable: Quoter has a Supplier Risk Score and Item Price Risk Score of Green, Purple, Blue, or Black.

Unacceptable: Quoter has a Supplier Risk Score and Item Price Risk Score of Yellow, Red or Grey.

*A quoter will not be considered favorably or unfavorably for award where no SPRS rating information is found during the Government's query before award.

Where no information is found in SPRS (Supplier Risk and Item Risk), the quoter shall be determined to have unknown risk score.

In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable".

Factor 3: Lowest Price

The Government will review the pricing submissions for completeness and compliance with the instructions provided in 52.212-1 and its addendum. Incomplete price submissions may not be evaluated, and the quote may be eliminated from the competition. Price will not be scored or rated. The Government will evaluate the reasonableness of the quoted prices. The Government will not evaluate the realism of quoted prices. Normally, adequate price competition establishes a fair and reasonable price.

The Government will evaluate Quotes for award by calculating a Total Evaluated Price (TEP) for each Quoter. TEP will be calculated by adding each priced Contract Line Item Numbers (CLIN/s) and Subcontract Line Item Number (SLIN/s), to include all option CLIN/SLINs, together and evaluating the total sum, or TEP of the quote. As part of the price evaluation, the Government will evaluate the Option to Extend Services under FAR 52.217-8 by adding one-half of the quoter's final option period price to the quoter's total price. Thus, the quoter's total evaluated price will include the Base period, Option Year 1, Option Year 2, Option Year 3, Option 4 and one-half of Option Year 4. Quoters are required only to price the Base and four (4) option years. Quoters shall not submit a price for the potential six-month extension of services period. The prices in the quotes shall not include taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government in accordance with DFARS 252.229-7001, Alt I; DFARS 252.229-7003; and DFARS 252.229- 7012, which are included in this solicitation.

The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. The evaluation of priced options is not a commitment from the Government to exercise those options in the future and shall not obligate the Government to exercise those options as part of the contract award. The evaluation of options will be used to evaluate TEP in accordance with 52.212-2 Factor 3: Lowest Price.

The Government will query the Supplier Performance Risk System (SPRS) as an additional evaluation method for evaluating item price risk. Item price risk will be evaluated by comparing quoted prices to historical prices paid for the same or similar end products which will be used to determine overall price risk to the Government. If a quoter's quoted total evaluated price/s is/are evaluated to be unreasonably high or low when compared to the price risk analysis report generated by the SPRS system, the quoter may not be considered for award. A quoter will not be considered favorably or unfavorably for award where no SPRS rating information is found during the Government's query before award. Where no information is found in SPRS, the quoter shall be determined to have unknown risk score. In the context of acceptability /unacceptability, "unknown" shall be considered "acceptable.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.214-34	Submission of Offers in the English Language.	1991-04		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data.	2024-05		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	2023-01		
252.225-7032	Waiver of United Kingdom Levies-Evaluation of Offers.	2003-04		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-00006, Revision 1)	2024-03	Deviation 2024-00006	2024-03

252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	2024-08	Deviation 2024-O0014	2024-08
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FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.	2016-02		

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this

action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.225-17	Evaluation of Foreign Currency Offers.	2000-02
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Evaluation of Foreign Currency Offers (Feb 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using <https://www.xe.com> in effect as follows:

(a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.

(b) For acquisitions conducted using negotiation procedures-

(1) On the date specified for receipt of offers, if award is based on initial offers; otherwise

(2) On the date specified for receipt of proposal revisions.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06
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Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
 - (2) A domestic partnership;
 - (3) A domestic corporation;
 - (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
 - (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that
- (1) It is is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 a full exemption, or partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.233-2 Service of Protest. 2006-09

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer Ricardo Colon Acevedo at ricardo.colonacevedo.civ@army.mil by obtaining written and dated acknowledgment of receipt.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions 1998-02

Incorporated by Reference.

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov>

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7012	Requirements for Submission of Proposals via Electronic Media.	2018-01		

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media:
[PDF, electronic spreadsheet format, electronic mail].

(End of provision)